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***911 Adam Opel GmbH v Autec**



No Substantial Judicial Treatment

Court

Bundesgerichtshof (Germany)

Judgment Date

14 January 2010

Report Citation

[2010] E.T.M.R. 50

Case I ZR 88/08

Bundesgerichtshof (Germany)

Bornkamm , Pokrant , Büscher , Bergmann , Kirchhoff (Judges)

January 14, 2010 ¹

Cars; Germany; Infringement; Logos; Toys; Trade marks; Unfair advantage;

H1 Trade mark—Opel Blitz logo (cars; toy cars)—Use of logo on scale model of toy car—Action for trade mark infringement—Whether consumers would regard use as trade mark use—Relevance of any presumption of licensing arrangement—Whether taking of unfair advantage—Action and appeal dismissed—Further appeal dismissed.

H2. The claimant, a well-known motor car manufacturer, was the proprietor of a German device trade mark known as the Opel Blitz device, which was registered for, among other things, motor vehicles and toys. Both the claimant and other companies sold toy replicas of its cars. The defendant sold toy model cars under its own trade mark, including a radio-controlled toy model car representing the claimant's Opel Astra V8 Coupé car, which featured the Opel Blitz device on its radiator grille. This car was sold in transparent packaging, through which the defendant's trade mark and company name could be seen.

H3. Regarding the use of the Opel Blitz logo on the radiator grille of the toy model car as an infringement of its trade mark, the claimant filed a law suit and sought various heads of relief. The defendant denied infringement on the ground that the relevant consumers would not

perceive the Opel Blitz logo affixed to the defendant's toy cars as an indication of trade origin but only as detail of a faithful reproduction.

H4. Following the reference to the Court of Justice of the European Union of questions for a preliminary ruling, the claimant's action was dismissed both by the Regional Court and by the Regional Appellate Court. The claimant then made further appeal to the *Bundesgerichtshof*.

H5. Held, by the *Bundesgerichtshof*, that the further appeal would be dismissed.

H6. The Appellate Court was correct to hold that the use of the Opel Blitz logo on the defendant's model cars was not detrimental to the function of the claimant's trade mark, namely to indicate trade origin. It was for the referring court to determine, by reference to the average consumer, whether the use at issue in these main proceedings affected the functions of the Opel logo as a trade mark registered for toys. The Appellate Court, in line with the finding of the Regional Court, held ***912** that the relevant consumers merely regarded the Opel Blitz logo affixed to the defendant's model car as a reproduction of detail of the original car, as a reproduction of the trade mark which the faithfully reproduced original car affixed on exactly the same space, and did not regard it as a reference to the trade origin of the model car bearing the sign.

H7. The fact that the relevant consumers perceived the Opel Blitz logo faithfully reproduced on the defendant's model cars as the Opel logo and thus as a trade mark is not a sufficient reason for assuming that the function of the trade mark of indicating trade origin is negatively affected. That is only so, under [art.5\(1\)\(a\) of Council Directive 89/104](#), if with regard to identical goods or services the trade mark's function of indicating trade origin is negatively affected or liable to be negatively affected, which would be the case if the consumers regarded the mark as an indication of origin of the model cars as such.

H8. Even if the consumer's presumption that the manufacturer of a toy car required a licence was based on the fact that the motor vehicle was reproduced in its entirety and thus the trade marks affixed to the original vehicle were necessarily included in the reproduction, it is not possible to conclude from this fact that the trade origin function of the claimant's trade mark, so far as it is registered for toys, was negatively affected.

H9. The guarantee function cited by the claimant, i.e that the trade mark guarantees that all goods provided with it have been prepared under the control of a single company which can be held responsible for its quality, is unaffected by the defendant's use since the relevant customers do not associate the use of the Opel Blitz logo on the defendant's model car with the goods "toys".

H10. Under [art.5\(1\)\(b\) of the Directive](#) the use of a sign identical to the trade mark may be prohibited, beyond that use which is associated with customer perceptions regarding trade origin for identical goods and services, when the goods or services for which the sign or the trade mark is used are similar, rather than identical, and a likelihood of confusion arises. However, the goods "motor vehicles" and "toy or model cars" are not similar.

H11. The Appellate Court admitted that there was an exploitation of the repute of the claimant's trade mark insofar as it was registered for motor vehicles to the extent that, due to the corresponding design of the toy model, the reproduction of actually existing motor vehicles necessarily involved a dependency on the repute of the motor vehicle's manufacturer or its trade mark. However, there would only be "unfair" advantage of the repute of the trade mark if, beyond the mere faithful reproduction, it was attempted in a different way to make a promotional use of the reputation of the claimant's motor vehicle. Since this was not done in the marketing of the defendant's toy cars, as the defendant had used its own trade marks, and since any association necessarily followed only incidentally from the reduced scale reproduction of the original as a toy, no unfair advantage was taken.

H12 Cases referred to:

Adam Opel AG v Autec AG (C-48/05) [2007] E.C.R. I-1017; [2007] E.T.M.R. 33

Ferrari-Pferd, BGH, February 19, 2004 – I ZR 172/01, GRUR 2004, 594, 596 = WRP 2004, 909

L'Oréal SA v Bellure NV (C-487/07) [2009] E.C.R. I-5185; [2009] E.T.M.R. 55

McLaren, BGHZ 126, 208 *913

Spielzeugautos, BGH, October 12, 1995 – I ZR 191/93, GRUR 1996, 57, 59 = WRP 1996, 13

UDV North America Inc v Brandtraders NV (C-62/08) [2009] E.C.R. I-1279; [2010] E.T.M.R. 25

H13 Legislation referred to:

MarkenG (German Trade Mark Act), s.14(2)(1)

First Council Directive 89/104, arts 5(1)(a) , 6(1)(a)

JUDGMENT

With regard to the identity protection afforded by a trade mark under s.14(2)(1) of the MarkenG , it is alone relevant that the functions of the trade mark are negatively affected, insofar as it is registered and used for goods or services that are identical with those for whom the sign at issue is used.

The claimant's revision against the decision of the Nürnberg Higher Regional Court 3rd Civil Senate of April 29, 2008 is dismissed.

The costs of the revision, including the costs of the intervener, shall be borne by the claimant.

Facts

1. The claimant, Adam Opel GmbH, is a well-known company of the automotive industry. It is the proprietor of the German device trade mark No. 1157264 (hereinafter referred to as the Opel Blitz (Opel lightning) device, which is registered inter alia for motor vehicles and toys:

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2. Toy models of its cars are marketed both by the claimant itself and also by third-party companies.

3. The defendant markets inter alia toy model cars under the designation "cartronic®". In January 2004, radio-controlled toy model cars representing copies of an Opel Astra V8 Coupé car in a reduced scale, and featuring the Opel Blitz logo affixed to the radiator grille, were offered in a transparent packaging. The package visibly contained instructions for use, on the front page of which the sign "cartronic®" was affixed; on the—likewise visible—back, the defendant's company ***914** name "Autec" and the defendant's seat were stated. The remote control of the model car was likewise provided with the designation "cartronic®" and the defendant's company name.

4. The claimant regarded the use of the Opel Blitz logo on the radiator grille of the toy model car distributed by the defendant as constituting an infringement of its trade mark. It therefore filed a lawsuit requesting that the defendant be ordered to cease and desist, to render account, that the defendant be found to have the obligation to pay damages and that the defendant had to destroy the infringing products in its possession.

5. The defendant, on whose side the Deutsche Verband der Spielwarenindustrie e.V. (German Association of Toy Industry) joined the lawsuit as intervener, on the other hand, claimed that the relevant consumers would not perceive the Opel Blitz logo affixed to the defendant's toy cars as an indication of trade origin but only as detail of a faithful reproduction.

6. The Regional Court suspended the proceedings and referred the matter to the European Court of Justice for a preliminary ruling under [art.234 EC](#) (now [art.267 TFEU](#)) on the following questions:

1. Does the use of a trade mark registered also for “toys” constitute use as a trade mark for the purposes of [art.5\(1\)\(a\) of the Trade Mark Directive](#) if the manufacturer of a toy model car copies a real car in a reduced scale, including the trade mark of the proprietor of the trade mark applied to the real car, and markets it?
2. If the answer to Question 1 is in the affirmative:
 - Is the type of use of the trade mark described in Question 1 an indication of the kind or quality of the model car within the meaning of [art.6\(1\)\(a\) of the Trade Mark Directive](#) ?
3. If the answer to Question 2 is in the affirmative:
 - In cases of this type what are the decisive criteria to be applied in assessing whether the use of the trade mark corresponds to honest practices in industrial or commercial matters?
 - Is this in particular the case if the manufacturer of the model car applies to the packaging, and to an accessory required in order to use the model, a mark recognisable to the trade as its own trade mark together with its company name and the address of its seat?

7. In its judgment of January 25, 2007 (*Adam Opel AG v Autec AG (C-48/05) [2007] E.C.R. I-1017; [2007] E.T.M.R. 33*), the ECJ answered the questions referred as follows:

“1. Where a trade mark is registered both for motor vehicles—in respect of which it is well known—and for toys, the affixing by a third party, without authorisation from the trade mark proprietor, of a sign identical

to that trade mark on scale models of vehicles bearing that trade mark, in order to faithfully reproduce those vehicles, and the marketing of those scale models:

- constitute, for the purposes of [Article 5\(1\)\(a\) of First Council Directive 89/104/EEC of 21 December 1988](#) to approximate the laws of the Member States relating to trade marks, a use which the proprietor of **915* the trade mark is entitled to prevent if that use affects or is liable to affect the functions of the trade mark as a trade mark registered for toys;
- constitute, within the meaning of [Article 5\(2\)](#) of that directive, a use which the proprietor of the trade mark is entitled to prevent – where the protection defined in that provision has been introduced into national law – if, without due cause, use of that sign takes unfair advantage of, or is detrimental to, the distinctive character or the repute of the trade mark as a trade mark registered for motor vehicles.

2. Where a trade mark is registered, inter alia, in respect of motor vehicles, the affixing by a third party, without the authorisation of the proprietor of the trade mark, of a sign identical to that mark to scale models of that make of vehicle, in order to faithfully reproduce those vehicles, and the marketing of those scale models, do not constitute use of an indication concerning a characteristic of those scale models, within the meaning of [Article 6\(1\)\(b\) of Directive 89/104](#) .”

8. In the light of the ECJ decision, the Regional Court dismissed the claimant’s action (LG Nürnberg-Fürth WRP 2007, 840). The claimant’s appeal was unsuccessful (OLG Nürnberg GRUR-RR 2008, 393 = WRP 2008, 1257).

9. With its further appeal (revision) for which leave was granted by the Appellate Court, the claimant followed up the relief sought. The defendant and the intervener requested that the legal action be dismissed.

Grounds

10. I. The Appellate Court held that with regard to the claims based on its device mark the claimant was not entitled to rely on s.14(2)(1) and (3) MarkenG (German Trade Marks Act). It substantiated this view as follows:

11. Admittedly, by affixing the Opel Blitz logo to a model car, the defendant used the claimant's trade mark within the meaning of s.14(2)(1) MarkenG. However, this did not infringe the main function of the trade mark, which is indicating the trade origin of the goods. Where a toy car was manufactured as a scale model of an original car, including affixing the trade mark on exactly the site where it is found on the original car, this did not infringe the function of this trade mark as indication of trade origin. For, the faithful reproduction of reality in a scale model also comprised the trade mark which was affixed to the original vehicle at the corresponding site. Where the defendant affixed the Opel Blitz logo to the radiator grille, the consumer would understand this as a faithful reproduction of the original vehicle and associate it—if at all—with a trade mark for vehicles rather than a trade mark for toy cars.

12. A significant portion of toys constitute a faithful reproduction of the adult world, in particular in the reproduction of means of transportation, such as cars, boats and trains. However, to allow this adult world to be depicted in accordance with the expectations regarding toys, for completion of the reproduction, the product “model car” must also be provided with the trade mark of the respective original vehicle exactly at the site where it is found in the original. A model car without the sign of the respective manufacturer would lose the character of a model car; it would be any toy car and not a model car. The fact that the relevant customers did not regard the Opel Blitz logo as constituting an indication of trade origin was confirmed ***916** by a customer survey carried out by the claimant itself. From this survey it followed that only 13 per cent of all persons interviewed and 11 per cent of the interviewed who at least once in a while buy or use toy or model cars saw the Opel Blitz logo as a linking factor for the identification of the manufacturer.

13. The court found that there was also no infringement under s.14(2)(3) MarkenG of a mark with a reputation because there was no unfair advantage taken of or detriment caused to the repute of the claimant's mark insofar as it was registered for motor vehicles.

14. II. This judgment stands up under revision.

15. 1. The Appellate Court did not commit a legal error in declining to hold that the defendant infringed the claimant's trade mark under s.14(2)(1) MarkenG .

16. a) The provision of s.14(2)(1) MarkenG implements [art.5\(1\)\(a\) of the Trade Mark Directive](#) and must therefore be interpreted in accordance with the Directive. According to the case law of the European Court of Justice, the requirements of [art.5\(1\)\(a\) Trade Mark Directive](#) are fulfilled where a sign that is identical to the trade mark is used, in the course of trade, without the consent of the proprietor, for goods and services which are identical to those for which the trade mark is registered, and where the sign is used as a trade mark, i.e. the use of the sign by a third party is detrimental to or may be detrimental to the functions of a trade mark, in particular its essential function, i.e. to guarantee to the consumers the trade origin of the goods or services (cf. ECJ, Decision of June 18, 2009: *L'Oréal SA v Bellure NV* (C-487/07) [2009] E.C.R. I-5185; [2009] E.T.M.R. 55 , with further references; cf. also ECJ, Decision of February 19, 2009: *UDV North America Inc v Brandtraders NV* (C-62/08) [2009] E.C.R. I-1279; [2010] E.T.M.R. 25). The functions of a trade mark include, besides its main function, i.e. guaranteeing trade origin, also its other functions, such as inter alia, guaranteeing the quality of the products or services designated therewith, or the functions of communication, investment or advertising (*L'Oréal* [2009] E.T.M.R. 55 at [58]). Thus, the protection afforded by [art.5\(1\)\(a\) Trade Mark Directive](#) is wider than the protection afforded by [art.5\(1\)\(b\) Trade Mark Directive](#) (s.14(2)(2) MarkenG), the application of which requires that there is a likelihood of confusion and that thus there may be detriment to the main function of a trade mark (*L'Oréal* [2009] E.T.M.R. 55 at [59]). Where the use of the sign that is identical to a trade mark cannot detrimentally affect any of the trade mark's functions, the trade mark proprietor cannot prevent its use on the basis of [art.5\(1\)\(a\) Trade Mark Directive](#) (*L'Oréal* [2009] E.T.M.R. 55 at [60]).

17. b) The Appellate Court held, without legal error, that the use of the Opel Blitz logo on the defendant's model cars is not detrimental to the function of the claimant's trade mark, namely to indicate trade origin.

18. aa) In its decision of January 25, 2007 in the present case, the European Court of Justice held that the defendant's use at issue does not negatively affect the essential function of the Opel logo as a trade mark registered for toys, insofar as the relevant public does not perceive the sign identical to the Opel logo appearing on the scale models marketed by the defendant as an indication that those goods come from the claimant or an undertaking economically linked to it (*Adam Opel* [2007] E.T.M.R. 33 at [24]). It was for the referring court to determine, by reference to the average consumer, whether the use at issue in the main proceedings affects the

functions of the Opel logo as a trade mark registered for toys (*Adam Opel [2007] E.T.M.R. 33* at [25]). *917

19. bb) The Appellate Court—in line with the Regional Court—held that the relevant consumers merely regarded the Opel Blitz logo affixed to the defendant’s model car as a reproduction of detail of the original car—namely as reproduction of the trade mark which the faithfully reproduced original car has affixed on exactly the same space—and did not regard it as a reference to the trade origin of the model car bearing the sign.

20. cc) The objections of the revision directed against this finding are not successful.

21. (1) Contrary to the view of the revision, the fact that the relevant consumers perceive the Opel Blitz logo faithfully reproduced on the defendant’s model cars as Opel logo and thus as trade mark with which the claimant marks its corresponding motor vehicles is not sufficient for assuming that the function of the trade mark of indicating trade origin is negatively affected. The type of injury against which s.14(2)(1) MarkenG (*art.5(1)(a) Trade Mark Directive*) ensures protection is—insofar as it relates to the question of detriment of the trade origin function of a trade mark—only fulfilled if with regard to identical goods or services the trade mark’s function of indicating trade origin is negatively affected or liable to be negatively affected. In the case at issue, identity of goods is only given to the extent that the defendant distributes model cars bearing the Opel Blitz device and that the claimant’s trade mark is also registered for toys. Insofar as the trade mark at issue is also registered for motor vehicles, no use for identical goods within the meaning of s.14(2)(1) MarkenG (*art.5(1)(a) Trade Mark Directive*) is given (cf. *Adam Opel [2007] E.T.M.R. 33* at [30]). Thus, with regard to s.14(2)(1) MarkenG it is irrelevant whether the relevant consumers regard the mark affixed on the model car as being the claimant’s trade mark registered and used for motor vehicles. Rather, it is essential that the consumers regard the mark as an indication of origin of the model cars as such. This was denied by the Appellate Court without legal error.

22. (2) As the Appellate Court held without legal error, the results of the customer survey submitted by the claimant are not inconsistent with the finding that the relevant consumers do not perceive the Opel Blitz logo affixed to the defendant’s toy model as a reference to the origin of this product from a particular enterprise. In answer to the question whom they consider to be the manufacturer of the defendant’s toy car shown to them, only 13 per cent of all interviewed consumers and 11 per cent of the interviewed persons who at least once in a while buy or use toy or model cars named the claimant’s enterprise; in contrast, 38 per cent of all interviewed persons as well as 48 per cent of the group of consumers who at least once in a while buy or use toy

or model cars named “Autec/Cartronic”. The Appellate Court’s view that this also confirmed that in the concrete case, the Opel Blitz logo was regarded by a sufficient number of persons to represent customer understanding as not constituting a reference to the trade origin of the model car, cannot be objected to for legal reasons.

23. Contrary to the revision’s objection, the Appellate Court’s evaluation of the survey result is not already affected by a legal error for the reason that the mere circumstance that part of the consumers in view of the product get up identified “Autec” or “Cartronic” as manufacturer did not rule out that the persons interviewed assumed that this was an enterprise economically linked to the claimant. The Appellate Court, to all intents and purposes, considered the question of whether, from the Opel Blitz logo affixed to the defendant’s model car, the relevant customers got the impression that this product originated from an enterprise economically linked to the claimant; it eventually answered this question in the negative. In this **918* connection it has taken into account the practice which it found to be well-known and meanwhile even common, to affix either on the toy cars as such or on the packaging a note to the effect that the trade mark of the manufacturer of the original car, such as “Opel”, was used “by license”. Such references to a licence were suitable to convey the impression to the consumer that the manufacturer of the model car required a licence from the respective manufacturer of the original car. However, this conception, such the Appellate Court, is tied up to the product “motor vehicle” rather than to the product “toy car”. The consumer’s conception that the manufacturer of a model car required a licence was based on the original motor vehicle in its entirety, including the trade mark identifying it as a specific type.

24. The finding of the Appellate Court that the relevant consumer would at best conclude from the “copying” of the motor vehicle in its entirety, but not from the use of the claimant’s well-known trade mark that license relations existed between the parties, cannot as such be objected to for legal reasons. Contrary to the revision’s objection this is, in particular, not contrary to experience. The conception of the consumers relied on by the Appellate Court is, for example, in accordance with the legal evaluation made in the case of design patent protection for the overall design of a motor vehicle, which may also relate to reproductions as toy (cf. BGH, Decision of October 12, 1995 – I ZR 191/93, GRUR 1996, 57, 59 = WRP 1996, 13 – *Spielzeugautos* (toy cars); Eichmann in Eichmann and von Falckenstein (eds), *Geschmacks-mustergesetz* (*Design Act*), 3rd edn, § 38, para.30). Furthermore, the Appellate Court correctly assumed that for presuming that the trade origin function of the trade mark registered for toys was detrimentally affected within the meaning of s.14(2)(1) MarkenG it was not sufficient that the conception of the relevant consumers that the toy car originated from an enterprise linked to the claimant by licence relationships was substantially based on circumstances other than the use of the Opel Blitz logo as trade mark (especially) for toys. Even if the consumer’s presumption that the manufacturer of a toy car required a licence was based on the fact that the motor vehicle was reproduced in its entirety and thus the trade marks affixed to the original vehicle were

necessarily included in the reproduction, it is not possible to conclude from this fact—contrary to the revision’s view—that the trade origin function of the trade mark at issue insofar as it is registered for toys was negatively affected. Also in this case, the notions with regard to origin held by the customers are tied up to the use of the relevant trade marks for motor vehicles rather than for toys. However, any detriment to the trade origin function (of these trade marks) possibly resulting therefrom is not comprised in the scope of application of s.14(2)(1) MarkenG ([art.5\(1\)\(a\) Trade Mark Directive](#)).

25. c) In the present case there is no indication whatsoever for an infringement of other functions than the trade origin function of the claimant’s trade mark insofar as it is registered for toys. As regards the trade mark at issue insofar as it is registered for toys, the guarantee function mentioned by the claimant—i.e. the trade mark guarantees that all goods provided with it have been prepared under the control of a single company which can be held responsible for its quality—is not affected since the relevant customers do not associate the use of the Opel Blitz logo on the defendant’s model car with the goods “toys”. This also applies to other functions of the trade mark at issue insofar as it is registered for toys. Its functions with regard to quality, advertising, communication or investment are not affected by the use of the Opel Blitz logo on the defendant’s model car because the customers do not associate the Opel Blitz logo with toy cars put on the market by the claimant. ***919** The question of whether possibly the functions with regard to quality, advertising, communication or investment of the trade mark insofar as it is registered for motor vehicles are affected, is not relevant in this connection, since also with regard to the goods or services for which the sign is used, the scope of application of s.14(2)(1) MarkenG is limited to identical goods, i.e. in the present case, to toys.

26. 2. However, under s.14(2)(2) MarkenG ([art.5\(1\)\(b\) Trade Mark Directive](#)), use of a sign identical to the trade mark may be enjoined, beyond what is associated with customer perceptions regarding trade origin for identical goods and services, when the goods or services for which the sign or the trade mark is used are similar, rather than identical, and a likelihood of confusion is given. However, in the present case the goods “motor vehicles” and “toy or model cars” are not similar (cf. *Adam Opel [2007] E.T.M.R. 33* at [34]). The fact that manufacturers of motor vehicles grant licenses for the production of model cars reproducing their vehicles in a reduced scale, is not sufficient to assume that the goods concerned are similar (cf. BGH, Decision of February 19, 2004 – I ZR 172/01, GRUR 2004, 594, 596 = WRP 2004, 909 – *Ferrari-Pferd*).

27. 3. Equally without legal error, the Appellate Court also denied claims under s.14(2)(3) MarkenG ([art.5\(2\) Trade Mark Directive](#)) for infringement of the claimant’s trade mark insofar as it is registered for motor vehicles.

28. a) The Appellate Court held that no detriment had been caused to the repute of the claimant's trade mark that—according to the claimant's submissions—is well-known for motor vehicles, because even a—possibly—bad quality of a model car did not affect the repute of the original motor vehicle; this was materially affected by periodical tests and field reports and the customer's own practical experience with the quality of the vehicle. The revision's view that it was rather obvious that a good or less good quality of the toy cars also had an effect on the image the customer held with regard to the car brand as such does not show that a different evaluation by the trial judges was based on a legal error. Contrary to the revision's view, from the fact alleged by the claimant that the defendant's toy cars did not meet the claimant's requirements with regard to quality and design, an unfair advantage taken or detriment caused to the repute of the claimant's mark insofar as it was registered for motor vehicles cannot be derived either.

29. b) The Appellate Court admitted that there was an exploitation of the repute of the claimant's trade mark insofar as it is registered for motor vehicles to the extent that, due to the corresponding design of the toy model, the reproduction of actually existing motor vehicles necessarily involved a dependency (also) on the repute of the motor vehicle's manufacturer or its trade mark. However, an "unfair" advantage taken of the repute of the trade mark within the meaning of s.14(2)(3) MarkenG would be given only if, beyond the mere faithful reproduction, it was attempted in a different way to make a promotional use of the reputation of the claimant's motor vehicle. Since this was not done in the marketing of the defendant's toy cars, as the defendant had used its own trade marks, and since any association necessarily followed only incidentally from the reduced scale reproduction of the original as a toy, no unfair advantage was taken.

30. The revision's objections in this regard are not successful either. Insofar as in the revision reference is made to the claimant's argument that the consumers attach great importance to the presence of the car brand on the toy car and therefore the market success of the model car was not least due to the fact that it was one of the claimant's vehicles with the Opel Blitz logo, this aspect only relates to an ***920** exploitation of reputation necessarily connected with a faithful reproduction as such, as had already been taken into consideration by the Appellate Court. Contrary to the revision's view, the claim that unfair acts within the meaning of s.14(2)(3) MarkenG have been committed cannot be substantiated by the fact that according to the claimant's submissions in the meantime about 85 per cent of all model or toy cars on the market originated from licensed companies, that this was known to the consumers, and that the defendant therefore conveyed the incorrect impression that the toy cars offered by it were marketed with the permission of or under the control of the claimant. The Appellate Court correctly held that a faithful reproduction as such is not already unfair within the meaning of s.14(2)(3) MarkenG because, in view of the expectations which the relevant consumers hold

with regard to such toys and the resulting decades-long practice of faithful reproductions, the defendant has a justified interest in using the trade mark (cf. in this regard also BGHZ 126, 208, 214 – *McLaren*). Like in the case of a descriptive use within the meaning of s.23(2) MarkenG , the claimant has to accept the degree of likelihood of confusion necessarily associated with a faithful reproduction. According to the legally acceptable findings of the Appellate Court, the association with the claimant's trade mark which the defendant conveys with its product is restricted to the associations necessarily resulting from a reproduction of the original.

31. III. In light of the above, the claimant's revision against the decision in the appeal proceedings is to be rejected. It is not necessary to refer the case to the European Court of Justice according to [art.267 TFEU](#) since in view of the ECJ decision of January 25, 2007 in the present proceedings and in view of the more recent case law of the ECJ with regard to the other trade mark functions, there are no longer any doubts concerning the interpretation of the Community law provisions relevant for the decision at issue.

32. The decision on costs which also includes the costs of the intervener is based on s.91(1), s.97(1), s.101(1) Clause 1 ZPO (Code of Civil Procedure). ***921**

Footnotes

- 1** Paragraph numbers in this judgment are as assigned by the court.